RP-2022-473224
09/21/2022 ER $34.00

MASON WOODS COMMUNITY ASSOCIATION, INC.
STANDBY ELECTRIC GENERATOR POLICY

STATE OF TEXAS §
§
COUNTY OF HARRIS §

I. PURPOSE

The purpose of this Standby Electric Generator Policy (this "***Policy***") is to provide guidance regarding the installation and operation of standby electric generators pursuant to Texas Property Code Section 202.019. The Board of Directors (the "***Board***") of the Mason Woods Community Association, Inc. (the "***Association***") has determined that it is in the best interest of the Association to establish this Policy concerning the installation of standby electric generators on property subject to its jurisdiction.

II. APPLICABILITY AND AUTHORITY

The property encumbered by this Policy is that property restricted by the Declaration of Covenants, Conditions, and Restrictions for Mason Woods, recorded in the Official Public Records of Harris County, Texas under Clerk's File No. RP-2022-378389, as same has been or may be amended from time to time (the "***Declaration***"), and any other property which has been or may be subsequently annexed into Mason Woods and made subject to the authority of the Association.

The capitalized terms used in this Policy are defined in the same manner as set forth in the Declaration and the interpretation provision set forth in the Declaration applies to this Policy, which definitions and interpretation provision are incorporated in this Policy by this reference.

Any reference made in this Policy to approval by the Architectural Review Committee (the "***ARC***"), means prior written approval by the ARC.

Pursuant to the Dedicatory Instruments governing the Property, the Association is vested with the authority to adopt policies, rules, and guidelines.

Pursuant to the authority granted in Section 202.019 of the Texas Property Code, the Board adopts this Policy, which runs with the land and is binding on all Owners and Lots within the Property. This Policy is effective upon the recording of same. After the effective date, this Policy replaces any previously recorded or implemented policy that addresses the subjects contained in this Policy.

Invalidation of any one or more of the covenants, conditions, restrictions, or provisions contained in this Policy will in no way affect any one of the other covenants, conditions, restrictions, or provisions of this Policy, which remain in full force and effect.

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III. STANDBY ELECTRIC GENERATOR POLICY

A. DEFINITONS

For purposes of this Policy, "***Standby Electric Generator***" means a device that converts mechanical energy to electrical energy and is:

1. Powered by natural gas, liquefied petroleum gas, diesel fuel, biodiesel fuel, or hydrogen;

2. Fully enclosed in an integral manufacturer-supplied sound attenuating enclosure;

3. Connected to the main electrical panel of a residence by a manual or automatic transfer switch; and

4. Rated for a generating capacity of not less than 7 kilowatts.

B. PARAMETERS FOR APPROVAL

The installation and operation of permanently installed Standby Electric Generators are permitted, subject to approval by the ARC, under the following parameters:

1. Standby Electric Generators must be installed and maintained in compliance with:

   (a) the manufacturer's specifications; and

   (b) applicable governmental health, safety, electrical, and building codes;

2. All electrical, plumbing, and fuel line connections for Standby Electric Generators must be installed only by licensed contractors;

3. All electrical connections for Standby Electric Generators must be installed in accordance with applicable governmental health, safety, electrical, and building codes;

4. All natural gas, diesel fuel, biodiesel fuel, or hydrogen fuel line connections for Standby Electric Generators must be installed in accordance with applicable governmental health, safety, electrical, and building codes;

5. All liquefied petroleum gas fuel line connections for Standby Electric Generators must be installed in accordance with rules and standards promulgated and adopted by the Railroad Commission of Texas and other applicable governmental health, safety, electrical, and building codes;

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6. Nonintegral Standby Electric Generator fuel tanks must be installed and maintained to comply with applicable municipal zoning ordinances and governmental health, safety, electrical, and building codes;

7. All Standby Electric Generators and their electrical lines and fuel lines must be maintained in good condition;

8. Any deteriorated or unsafe component of a Standby Electric Generator, including electrical or fuel lines, must be repaired, replaced, or removed, as appropriate;

9. A Standby Electric Generator must be screened if it is:

   (a) visible from the street that the residence faces;

   (b) located in an unfenced side or rear yard of a residence and visible either from an adjoining residence or from adjoining property owned by the Association; or

   (c) located in a side or rear yard fenced by a wrought iron or residential aluminum fence and visible through the fence either from an adjoining residence or from adjoining property owned by the Association;

10. Periodic testing of Standby Electric Generators should be in accordance with the manufacturer's recommendations and must occur between the hours of 10:00 a.m. and 4:00 p.m.; and

11. The preferred location for Standby Electric Generators is:

    (a) at the side or back plane of the home;

    (b) outside of any easements located upon such Lot; and

    (c) outside of all side setback lines for such Lot.

    However, in the event that the foregoing preferred location either (i) increases the cost of installing the Standby Electric Generator by more than 10%, or (ii) increases the cost of installing and connecting the electrical and fuel lines for the Standby Electric Generator by more than 20%, then the Standby Electric Generator will be located on the Lot in a position that complies as closely as possible with the preferred location without violating either (i) or (ii) noted above.

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C. PROHIBITIONS

1. Standby Electric Generators may not be used to generate all or substantially all of the electrical power to a residence, except when utility-generated electrical power to the residence is not available or is intermittent due to causes other than nonpayment for utility service to the residence.

2. Owners are prohibited from locating Standby Electric Generators on property owned or maintained by the Association.

D. ARC APPROVAL

Owners are required to obtain written approval from the ARC prior to the installation of a Standby Electric Generator. The submission of plans must include a completed application for ARC review, a site plan showing the proposed location of the Standby Electric Generator, the type of screening to be used (if required as noted in Article II), and a copy of the manufacturer's brochures. The Association may not withhold approval of a Standby Electric Generator if the proposed installation meets or exceeds the provisions set forth in Article II.

Any installation not in compliance with this Policy is considered a violation of the Dedicatory Instruments governing the Property.

This Standby Electric Generator Policy does not apply to property that is owned or maintained by the Association.

[SIGNATURE PAGE FOLLOWS]

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CERTIFICATION

I certify that, as President of the Mason Woods Community Association, Inc., the foregoing Standby Electric Generator Policy was approved on the 26 day of August, 2022, at a meeting of the Board of Directors at which a quorum was present.

DATED, this the 15 day of September, 2022.

By: Daniel Gillham
Print Name: Daniel Gillham
Title: President

STATE OF TEXAS §
§
COUNTY OF Harris §

BEFORE ME, on this day personally appeared Daniel Gillham, the President of the Mason Woods Community Association, Inc., known by me to be the person whose name is subscribed to this instrument, and acknowledged to me that s/he executed the same for the purposes and in the capacity stated in this instrument, and as the act and deed of said corporation.

Given under my hand and seal this the 15 day of September, 2022.

Lindsey Kucera
Notary Public – State of Texas

NOTARY PUBLIC STATE OF TEXAS
LINDSEY KUCERA
Notary ID #129614853
My Commission Expires
October 9, 2022

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After Recording Please Return To:
Lisa L. Gambrell
Isabella L. Vickers
Roberts Markel Weinberg Butler Hailey PC
2800 Post Oak Blvd., 57th Floor
Houston, Texas 77056

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09/21/2022 12:00 PM

e-Filed & e-Recorded in the

Official Public Records of

HARRIS COUNTY

TENESHIA HUDSPETH

COUNTY CLERK

Fees $34.00

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RECORDERS MEMORANDUM
This instrument was received and recorded electronically and any blackouts, additions or changes were present at the time the instrument was filed and recorded.

Any provision herein which restricts the sale, rental, or use of the described real property because of color or race is invalid and unenforceable under federal law.
THE STATE OF TEXAS
COUNTY OF HARRIS
I hereby certify that this instrument was FILED in File Number Sequence on the date and at the time stamped hereon by me; and was duly RECORDED in the Official Public Records of Real Property of Harris County, Texas.

COUNTY CLERK
HARRIS COUNTY, TEXAS